



The Selectboard
TOWN OF WESTHAMPTON
TOWN HALL
1 SOUTH ROAD
WESTHAMPTON, MASSACHUSETTS 01027

Minutes of the Meeting - Westhampton Selectboard

Monday, April 11, 2022, at 6:30 PM

The Westhampton Selectboard scheduled a regular meeting on Monday, April 11, 2022, at 6:30 PM. Pursuant to Chapter 20 of the Acts of 2021, the meeting was held as a "hybrid" (in person and remote access) meeting. Some members of the board and the public attended the meeting via "Zoom" conferencing. Meeting ID Code: 8704 390 0582. In-person attendance by the public was permitted. The meeting was not recorded.

Call to Order

Call to Order – 6:37 PM

PRESENT IN PERSON: Phil Dowling, Maureen Dempsey, Teri Anderson, Karl Norris, Duane Nichols; Ben Warren; Bill Tracy; PRESENT BY REMOTE: Patty Cotton, Doug Finn, Mary Lou Burgess, Robby Armenti; David White; Todd Alexander.

Interview / Appointment: Cemetery Superintendent

Mr. Karl Norris outlined the process used by the Cemetery Commission for soliciting candidates and conducting interviews.

Mr. Norris also described the general duties of the position, including lawn mowing, grass trimming, brush trimming along the perimeter, services provided to families for burials, including setting vaults, foot-marker stones, plaques, etc; coordinating other activities related to services at the site. Mr. Norris also described plans to expand the cemetery grounds into a two-acre area to the north of the existing cemetery, which would require more work to maintain.

On behalf of the Cemetery Commission Mr. Norris recommended Mr. Duane Nichols for the position of cemetery superintendent.

Mr. Norris noted that he had retired two years prior from a full-time position, but has worked part-time with his brother for the cemetery in Williamsburg. Mr. Nichols also noted his experience as chief of the Northampton Fire Department prepared him to work with people on a variety of levels.

Mr. Nichols asked about the salary for the position. Mr. Norris asked the Selectboard to consider an increase of the annual stipend to \$9,000 (from ~ \$6900), and offered testimony to support the request.

After brief deliberation, it was MOVED by Dowling, SECONDED by Dempsey

To appoint Duane Nichols as cemetery superintendent.

VOTED: 3, 0, 0. (6:47 PM).

Department and Committee Updates

Highway (Bill Jablonski)

Mr. Jablonski noted recent work: Patching potholes; extensive service for the grader; washout repair on dirt roads; break-room in the garage is nearly complete; portions of Loudville road was milled, with paving scheduled to start this week. One employee was

on vacation for a week.

Mr. Jablonski noted that Scott _ had received a “Roads Scholar” certificate as a result of his training.

Mr. Jablonski also noted his efforts to get repairs done to a Caterpillar loader, an essential piece of equipment that has been mechanically faulty for some time. He noted that the daily equipment use log was invaluable in making the case with the equipment supplier to document the trouble. He said that the outstanding repair bill was forgiven, and that the company may trade out the faulty machine for a new / used unit at no cost to the Town.

UPDATED DISPOSAL AGREEMENT – Review and Sign

Mr. Jablonski briefly noted changes to the town’s current solid-waste disposal situation with the current facility operator in West Springfield; he presented a ‘bridge disposal service agreement’ that will provide trash-hauling services through June 1, and requested approval.

It was MOVED by Dowling, SECONDED by Anderson

To approve the bridge contract, and authorize Phil to sign on behalf of the board.

VOTED: 3, 0, 0 (6:58 PM)

There was some discussion related to maintenance of dirt roads, particularly related to snow removal, the costs of material, and the possibility of seeking MVP grants to provide more permeable surfaces for some of the gravel roads.

Health (Robby Armenti)

Ms. Armenti noted that the Foothills Health District was conducting interviews for a new health inspector; long covid support clinics would be starting soon; Ms. Armenti will also be speaking with Mark Bushee in regard to mosquito spraying.

Conversation with Lindsay Sabadosa, State Rep for the First Hampshire District

Ms. Sabadosa briefly introduced herself, and described the duties of the position. Mr. Dowling offered his appreciation for her availability as a representative and a conduit to the state processes and operations.

Mr. Dowling discussed the town’s proposed uses of ARPA funding, and the need to observe deadlines for reporting and expending ARPA funds. He and Susan Bronstein noted that although the grant is firm on deadlines, the online ARPA reporting system is not functioning properly making it difficult for towns to report as required.

There was some discussion related to the Town’s efforts to apply CARES funds to the cost overruns relative to the public safety building.

Mr. Dowling noted that the new public safety building is the first response to any issue or emergency at the regional school; to that end he reiterated his request for any additional funding that could be made available through the state. Ms. Sabadosa noted her support for supplemental funding, and that if available, such funds will be generally targeted for the project, and not specific to any given aspect of the project. Ms. Sabadosa also provided a general overview of the budget process, and when funds would be confirmed, and made available.

Mr. Dowling described some of the challenges to the public safety project related to materials delays, and increases in materials costs.

Ms. Anderson noted the board had sent a letter on this priority, and reiterated the need for expanded funding for regional public transportation, and its potential to positively impact the town. Ms. Sabadosa noted that there would be a give and take (“push pull”) relative to

funding regional transit, and that number would likely increase before the budget is finalized.

Ms. Anderson also noted the challenges posed by gravel roads, and the impact on changing weather patterns on maintenance.

Ms. Anderson noted the need to continue funding the MVP programs at the state level, and the positive impact of such funding on the ability of towns to maintain and improve aging infrastructure.

Ms. Anderson also noted strong interest in allowing hybrid meetings being allowed to continue past the July 15 expiration of the current legislation.

Ms. Anderson also noted an interest in allowing towns and cities greater latitude to regulate large-scale solar in order to protect natural resources. Ms. Sabadosa described efforts at the state level as meeting with mixed reviews and some opposition. Ms. Anderson noted the importance of maintaining uninterrupted wooded areas.

Mr. Dowling noted the importance of creating incentives for building solar over existing developed areas (parking lots, roofs, etc.) instead of on undisturbed areas.

There was some discussion about past efforts to leverage incentives for solar to support best practices for solar siting.

Mr. Dowling noted the need to support affordable and senior housing efforts in rural communities. Ms. Sabadosa asked whether land in Westhampton was currently being considered for senior or affordable housing. There was some discussion about senior housing projects. Ms. Sabadosa encouraged the Selectboard to communicate any possible land that could be appropriated for housing.

Mr. Tracy noted that mobile homes were not considered 'affordable' or low-income housing, and that it should count towards the count of same.

Ms. Anderson reiterated the need for greater support for regional school transportation, both in-district and out-of-district. Rep. Sabadosa mentioned that single-source bidding for transportation services, lack of bidders, lack of drivers, and rising costs of same have been challenging.

Police Chief White noted the burdens that police reform has placed on small towns, and how difficult it will become to attract and retain officers.

Ms. Sabadosa asked whether additional funding could help; the chief noted that body cams posed a significant expense, as well as cameras required for cruisers.

Mr. Finn asked whether state assistance would be helpful to groups of small towns considering regional solutions. Chief White noted that it might be helpful.

The chief noted that the School Resource Officer, present at the regional school for some years, had not been possible in this year, due to staffing and funding shortages. There was some discussion relative to current staffing levels, and past interactions with state officials regarding policing in Westhampton. Rep. Sabadosa inquired as to what is fully staffed for Westhampton. Chief White stated 40 hours/week with 2 people (currently staffed with officers who have full-time jobs elsewhere).

Mr. Dowling noted his support for the SRO. The Chief noted that the schools, and school committee's support for the SRO as well.

Mr. Tracy noted recent regulatory efforts relative to forested areas, describing them as "well intentioned, but not necessarily wise"; Ms. Sabadosa noted that two efforts (through DCR, and through US Fish and Wildlife) are likely not going to proceed in their current form; however the conversations continue to occur, and some action is likely in the future.

Ms. Anderson, speaking as a resident not a Selectboard member, asked about a bill that had been advancing for several years regarding alternative massage practices or treatments; there was some discussion about its progress, and the amendments that had been offered.

Ms. Sabadosa strongly encouraged the board to engage their state senator on all of the topics discussed, so as to help ensure forward progress.

Ms. Anderson thanked Ms. Sabadosa for her time, and the board thanked her for the visit.

Public Safety Building (Phil Dowling)

Mr. Dowling provided an update on the project; the committee would be meeting with the architect in the morning, and a full committee meeting on Wednesday. Increases in materials continue to come in, attributed to Covid delays and shortages. Mr. Dowling noted that the project is roughly \$120,000 short; negotiation with the architecture firm may yield some returns; Mr. Dowling noted that negotiations with the paint contractor was required in order to maintain the bid amount.

Mr. Dowling also noted some smaller additional sources of funding.

Old Business

Ongoing discussion / deliberation on possible ARPA funded projects

There was some discussion / review of ARPA proposals, with some reprioritization of certain items. (As of April 11, 2022, the updated spreadsheet remains available for public inspection on the Town's website.)

There was some discussion about the various proposed uses of ARPA funds; Ms. Anderson suggested reserving some funding for potential later uses.

Mr. Dowling proposed using \$150,000 in ARPA funds for cost overruns at public safety building. Ms. Anderson noted she supports the use of ARPA funds for this purpose but that we should wait to make this decision to see what is decided on use of ARPA funds for highway and police vehicles.

There was discussion related to the benefits of using ARPA funding vs. Free Cash for certain projects. The board also discussed possible timelines for expending ARPA funds.

Mr. Dowling noted that, in informal conversations, the Town Accountant recommending putting all available free cash into stabilization if possible.

REVIEW: Proposed FY2023 Budget

The board reviewed the FY2023 Budget as drafted, the balance sheet with numbers as available, as well as the Capital Investment Plan as revised. There was considerable discussion about the impact of general budget and capital expenses on the tax rate, the use of free cash, the placement and timing of certain items on the Capital Investment schedule, the creation of, and appropriation of free cash to a Capital Stabilization Fund.

There was some question as to the timing of the purchase of the tractor and mower, requested by the Highway Department. Mr. Dowling noted that he would speak with the Highway Superintendent about the request.

There was some discussion related to the funding source of the proposed highway truck and police vehicle, and how warrant articles related to both might be considered by the Finance Committee and Town Meeting.

The board considered the request to increase the salary cemetery superintendent. After

some discussion it was MOVED by Dowling, SECONDED by Dempsey

To set the annual stipend for the Cemetery Superintendent to \$9,000.

VOTED: 3, 0, 0.

(Tape time: 2:31:30)

Mr. Finn noted that ARPA funding could be used for nearly any legitimate government use; most, if not all proposed uses of ARPA funds could be funded through appropriation or use of free cash.

Anderson expressed interest in holding ARPA funds for possible uses that may come up that are not appropriate for Town meeting – possible uses that are not predictable.

Finn: ARPA rules give the Selectboard the ability to immediately appropriate and immediately expend.

Anderson: Police and fire vehicles were already on the capital plan, and heading to town meeting.

Dowling: We don't have to use all of our free cash, and we don't have to apply much free cash against taxation. We have seen additional funding come into the town over the past years. If the expectation is to keep the tax rate as level as possible, with no great increase or reduction year to year. We might assume that we'll have \$200k-\$300k of free cash next year, but it will be fairly lean. The difficulty in future years will be increases in costs that will not be offset by increases in revenue.

Mr. Holt: It's expected that there will be some better new growth over the next years, with new homes built around town.

There was some discussion related to the timing of the purchase of a tractor with mower for the highway department.

There was discussion related to the increase to the general operating budget as compared to the levy limit; the board reviewed the general budget spreadsheet, and reviewed the various requests for funding. There was some concern about the funding request for Vocational Tuition; the board recommended increasing the funding request to \$300,000.

The board reviewed other requested budgets from the schools.

The question in regard to how encumbrances work. Mr. Finn noted that he would speak with the Town Accountant as to how encumbrances should be represented in the proposed budget.

There was some discussion related to the impact of Proposition 2-1/2 on the existing budget, and the estimated receipts; sources of revenue were reviewed and considered.

Mr. Dowling noted that he would be reviewing the materials in detail in advance of Finance Committee meeting on April 18, and would assist in helping to create presentation materials.

Mr. Dowling reiterated the question in regard as to the Board's decision about the use of ARPA funding for capital purchases.

Dowling: Are we going to recommend that the highway truck and police vehicle be paid for through Free Cash or through ARPA. I don't have an opinion one way or the other.

Dempsey: Has Finance Committee provided a recommendation about the expense of ARPA?

Anderson: Not at this point. I would like to do what was originally discussed – to save ARPA funding for potential future uses, and pay for the vehicles from other funds, such as Free Cash.

Dowling: I have no problem with that.

Dempsey; I understand the advantage of keeping ARPA for other needs, as it is a more flexible funding source.

It was agreed that the Board would proceed with submitting warrant articles for both the Highway truck and the Police vehicle to Town Meeting with payment from stabilization or free cash and hold ARPA funds as more flexible funding. Teri noted the Finance Committee was seeking a final recommendation from the Selectboard on the use of ARPA funds for their deliberations on 4/18.

Town Meeting Warrant

The board postponed review of the Town Meeting Warrant until the next meeting.

Financial Management Review from DLS

The board postponed review of the Financial Management Review to a later meeting.

Town Report

Mr. Dowling noted that he would like to revise the town report section about the public safety building's progress; Mr. Finn noted the need to finalize the Town Report by Friday, April 15.

New Business

Begin Update to Natural Hazard Mitigation Plan

Mr. Todd Alexander noted that the Plan should be updated every five years; Mr. Alexander suggested that the board consider an update to the 2017 plan, including newer information, and updating information about any changes to existing infrastructure.

The board generally agreed to support Mr. Alexander's efforts to update the plan, and to include ideas from any departments or persons as he sees fit. Ms. Anderson suggested the priorities identified in the MVP Planning Summary could be helpful in updating the document.

Correspondence

Mr. Finn noted receipt of a "Thank You" card from Westhampton Church for the continued funding, and a memo from Barbara Pelessier suggesting the formation of a Grants Committee. Mr. Finn suggested that a grants committee is a good idea and encouraged the board to consider it going forward.

Review / Approve Minutes – from March 14, 2022, March 28, 2022

The minutes of March 14 and March 28 were reviewed.

It was MOVED by Dowling, SECONDED by Dempsey

To approve the minutes of March 14, 2022.

VOTED: 3, 0, 0. (9:47 PM)

It was MOVED by Dowling, SECONDED by Dempsey

To approve the minutes of March 28, 2022.

VOTED: 3, 0, 0. (9:48 PM)

Review of Payroll and A/P Warrants

The board reviewed an invoice from Mr. Finn for planning consultant work.

After some discussion, it was MOVED by Dowling SECONDED by Dempsey

To approve the pay-rate as proposed, and approve payment of the invoice as presented.

VOTED: 3, 0, 0. (9:50 PM)

Further, it was MOVED by Anderson SECONDED by Dowling

To approve the Payroll and A/P Warrants as presented.

VOTED: 3, 0, 0. (9:50 PM)

Other items not reasonably anticipated at time of posting

No other business was presented for consideration.

Schedule Next Meeting:

Mr. Dowling noted that the next meeting is anticipated to be on April 25, 2022.

Executive Session

Mr. Finn requested an Executive Session.

It was MOVED by Dowling SECONDED by Dempsey

To enter into Executive Session for the purpose of discussing sale or transfer of real estate, the Chair determining that it is in the Town's best interest to do so.

VOTED: DEMPSEY: YES; ANDERSON: YES; DOWLING: YES. (9:52 PM)

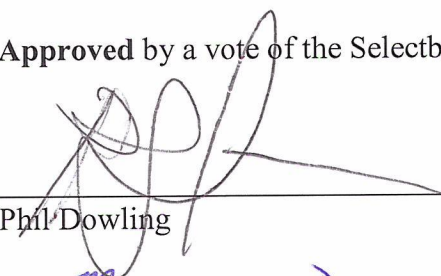
Mr. Dowling noted that the board would leave executive session only to adjourn.

Adjourn

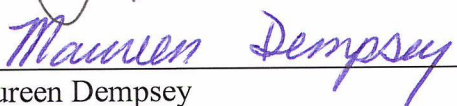
It was MOVED by Dowling, SECONDED by Dempsey **to adjourn.** WITHOUT OBJECTION. Adjourned at 9:58 PM.

Respectfully submitted,
Douglas C. Finn.

Approved by a vote of the Selectboard at a regular meeting, held on April 25, 2022.



Phil Dowling



Maureen Dempsey

Teri Anderson